

8.	25CV2627	MOUNTAIN ROOFING SYSTEMS VS AM DEVELOPMENT INC. ET AL
MOTION TO ENFORCE SETTLEMENT AGREEMENT		

This case stems from a Breach of Contract action filed by Plaintiff on September 29, 2025. The Parties thereafter entered into a Settlement Agreement pursuant to Code of Civil Procedure § 664.6

On May 29, 2026, Plaintiff filed the following:

1. Notice of Motion and Motion to Enforce Settlement Agreement; Plaintiff Mountain Roofing Systems' Memorandum of Points and Authorities; and
2. Declaration of Danyal J. Mico in Support of Plaintiff Mountain Roofing Systems' Motion to Enforce Settlement Agreement.

Plaintiff's motion seeks to enforce the Settlement Agreement and enter Judgment in the amount of \$40,915, plus \$4,060 in attorneys' fees and costs incurred in connection with bringing the motion.

Adam Murray signed the Settlement Agreement as President of Defendant, AM Development Inc.; however, he did not sign on the signature line for him as an individual Defendant. Plaintiff attempted to have Mr. Murray sign as an individual, but no signature was received. Pursuant to the Settlement Agreement, Defendants had 30 days from March 25, 2026, to remit the settlement payment. To date, it has not been received.

Plaintiff's attorney, Danayl Mico, attests under penalty of perjury Plaintiff has incurred costs and attorney's fees in the amount of \$4,060 to enforce the stipulation.

The Settlement Agreement provides, in part (emphasis added):

This Settlement Agreement and Mutual Release ("Agreement") is made effective as of March 25, 2026 ("Effective Date") by and between Plaintiff Mountain Roofing Systems, a California corporation, ("Mountain") and Defendants AM Development Inc., a California corporation ("AM Development") and Adam Murray ("Murray," collectively with AM Development shall be referred to as "Defendants"). Mountain, AM Development, and Murray are each a "Party" to this Agreement, and referred to collectively herein as the "Parties" to this Agreement.

2. In consideration for this Agreement, Defendants shall pay to Mountain the total sum of Forty Thousand Nine Hundred and Fifteen Dollars (\$40,915.00) ("Settlement Payment") so that it is received within thirty (30) calendar days of the Effective Date of this Agreement. Defendants shall issue payment to

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"ElGuindy, Meyer & Koegel, APC Trust Account", and send payment to 2990 Lava Ridge Court, Suite 205, Roseville, CA 95661.

3. In consideration for this Agreement, Mountain shall file and serve a Request for Dismissal of the entire Complaint with prejudice immediately upon receipt of the Settlement Payment but in no event later than thirty (30) days after receipt of such payment. In further consideration for this Agreement, Mountain shall record a Release of Mechanic's Lien releasing its mechanic's lien at issue in the Complaint in its entirety.

20. This Agreement may be enforced by any procedure permitted by law, including without limitation under Code of Civil Procedure section 664.6, with the Santa El Dorado County Superior Court to retain jurisdiction thereon. If either Party brings an action to enforce or interpret this Agreement, following notice to the other Party and an opportunity to cure the alleged breach, the prevailing Party in any such action shall be entitled to reasonable attorney fees and costs of pursuing that action.

No response has been filed by Defendants.

Code of Civil Procedure § 664.6 provides the Court may enter judgment pursuant to the terms of a written settlement agreement. Mr. Murray only signed the Settlement Agreement as President of Defendant, AM Development Inc., not as an individual. Despite the failure of all Defendants to sign, the Court has the authority to enforce agreements with the Parties who entered the Settlement Agreement.

Notably, our holding does not interpret section 664.6 to require the signature of all of the parties in the action. Certainly we can conceive of a multiple party litigation where some, though not all of the parties enter into a settlement agreement. The statutory purpose of expediting settlement agreements to judgment would not be furthered if it was unavailable to those litigants on both sides of a multi-party action who chose to enter into a settlement agreement in the manner contemplated by the statute. We simply hold the section's requirement of a "writing signed by the parties" must be read to apply to all parties bringing the section 664.6 motion and against whom the motion is directed.

Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 306 [87 Cal.Rptr.2d 822, 827]

As Mr. Murray did not sign as an individual, the Court does not have the authority to enforce the Settlement Agreement against him personally. The Court grants Plaintiff's request to enforce the Settlement Agreement and enter Judgment in the amount of \$40,915, plus \$4,060 in

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attorneys' fees and costs against Defendant, AM Development Inc. The Court denies Plaintiff's request to enforce the Settlement Agreement and enter Judgment against Defendant, Adam Murray, as an individual.

TENTATIVE RULING #8:

PLAINTIFF'S REQUEST TO ENFORCE THE SETTLEMENT AGREEMENT AND ENTER JUDGMENT AGAINST DEFENDANT, AM DEVELOPMENT INC., IS GRANTED. JUDGMENT SHALL BE ENTERED AGAINST DEFENDANT, AM DEVELOPMENT INC., IN THE AMOUNT OF \$44,975, COMPRISED OF THE OUTSTANDING BALANCE (\$40,915) AND ATTORNEYS' FEES AND COSTS (\$4,060).

PLAINTIFF'S REQUEST TO ENFORCE THE SETTLEMENT AGREEMENT AND ENTER JUDGMENT AGAINST DEFENDANT, ADAM MURRAY AS AN INDIVIDUAL, IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.